

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, AUGUST 14, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**GEORGE LACSON v. RAY BEYOND CORP; ET AL.
Case No. CU24-04909**

Trial Management Conference

TENTATIVE RULING:

Trial counsel to appear in person.

Jury trial is scheduled to commence August 27, 2026 with a 7 day time estimate. Based upon the TMC packets, the court believes this estimate to be unrealistic and that the trial will be at least 14 days in length.

Trial commences at 9 am on August 27 and thereafter at 10 am Tuesday through Friday unless otherwise ordered. Typically, trial recesses between 4 and 415 pm.

Trial Management Conference – Tentative Rulings

The following are the tentative rulings in anticipation of the continued Trial Management Conference scheduled for August 14, 2026 at 9:00 a.m.

A. Statement of the Case:

The court intends to provide the following statement to jurors based on the parties' joint statement of the case:

This lawsuit was filed by George Lacson after a rear end vehicle accident occurred on June 8, 2023, on Leisure Town Road in Vacaville California. The defendants are

Spectrum Center, Inc. and Tajuana Neshay Hill At the time of the accident, Ms. Hill was an employee of Spectrum Center, Inc.

Liability is not in dispute. The parties agree that during the course of her employment Ms. Hill was driving the vehicle which rear-ended Mr. Lacson's vehicle. Mr. Lacson's truck was pushed forward into another vehicle as a result of the collision. The parties agree that the negligence of Ms. Hill was the sole cause of the rear end accident.

Damages to George Lacson are in dispute. George Lacson alleges that he has suffered personal injuries as a result of the motor vehicle accident. Spectrum Center, Inc. and Ms. Hill dispute the extent and nature of Mr. Lacson's alleged injuries and also whether the alleged injuries were caused by the accident.

B. Plaintiff's Trial Management Statement and Motions in Limine

The court reviewed Plaintiff's 427 page Trial Management Statement filed July 23, 2026. The court additionally reviewed Defendant's oppositions filed August 4, 2026. The court has also reviewed the additional submissions by both parties on August 4 and 11, 2026.

1. **Witnesses:** Plaintiff requested that a treating physician be permitted to appear remotely by filing a request for remote appearance. This is not an appropriate vehicle to request remote appearances by witnesses for a jury trial. Parties to meet and confer to determine if there is an objection to a remotely testifying witness. If there is no objection, a party who calls a witness remotely does so at their own peril. If there is an objection, the court does not permit remote testimony by witnesses during a jury trial. Parties to work on daily calendars identifying witnesses and schedules for each day. Plaintiff has identified an excessive number of expert and treating witnesses with overlapping topics. For example, why is it necessary to have testimony from two treating chiropractors? Counsel is advised the court may exercise its discretion under Evidence Code section 352.

2. Stipulations

Please meet and confer with defense counsel to confirm stipulations and reduce these stipulations to writing. There should never be a need for a custodian of records to testify. Conversely, it is a rare x-ray that a juror can examine on his or her own. But if an x ray is foundational to another expert's opinion, the parties should stipulate to admissibility.

3. **Plaintiff's Exhibit List:** Please review your exhibit list and identify only exhibits you intend to move into evidence versus exhibits that are simply foundational for experts. 154 exhibits is excessive and will cause this trial to triple in length. (Evid. Code, § 352.) Due to the volume of proposed exhibits, upon submission to the jury for deliberations, you will be required to provide 12 copies of the admitted exhibits, so each juror has a copy for deliberations.

4. **Plaintiff's Motions In Limine**

The court is not required to rule on any motion in limine prior to voir dire as demanded by Plaintiff. Motions in limine may be reserved.

1. **MIL 1:** Preclude term "independent medical exam." **Not opposed. GRANTED.**

2. **MIL 2:** Preclude opinions by Kara Flavin, M.D. not expressed in deposition and providing opinions not supported by scientific support. MIL 2 alleges that Dr. Flavin did not review diagnostic radiological files, an EEG test or oculometrics examination and she objected generally to the EEG test. Defendants agree they will not request opinions about previous cervical epidural steroid injections, accident reconstruction or biomechanical engineering. The balance of MIL2 is **DENIED**.

3. **MIL 3:** Exclude supplemental expert witness Erik Volk as untimely as the economist is not in rebuttal to any witnesses disclosed. **DENIED, PROVIDED DEFENSE MAKES VOLK AVAILABLE FOR DEPOSITION.**

4. **MIL4:** Exclude reference to accident being minor and accident reconstruction or biomechanical engineering opinions. **With clarification, not opposed. GRANTED IN PART. Liability is not in dispute but generally the nature of the impact is relevant to damages and expert opinions related to treatment. How do the parties intend to present this foundational evidence?**

5. **MIL5:** Preclude various opinions by Dr. Serdahl. Defendant does not oppose precluding Dr. Serdahl from opinion regarding forces of the collision or sub rosa. Dr. Serdahl is not precluded from testifying about employing an optometrist in his practice. Dr. Serdahls is not precluded from testifying about the referral pattern for Dr. Stephenson and Dr. Fong. Attorney referral evidence is relevant. (See *Qaadir v. Figueroa* (2021) 67 Cal.App.5th 790, 808.) The balance of MIL5 is **GRANTED** as lacking foundation.

6. **MIL6:** Preclude reference to how judgment proceeds will be used. **Not opposed. GRANTED.**

7. **MIL7:** Preclude Defendants from apologizing. **DENIED.** The jury will be well instructed not to make decisions based upon bias or emotion and questions eliciting these types of answers should not be made by counsel. But a defendant should not be prevented from suitably acknowledging wrongdoing nor be penalized for appearing to avoid responsibility. Evaluating witness credibility and demeanor is also part of the jury's role.

C. Defendant's Trial Management Statement and Motions in Limine

The court reviewed Defendant's 1820 page Trial Management filed on July 23, 2026. The court considered Plaintiff's oppositions filed August 4 and 11, 2026.

1. **Witnesses:** As with discussion of Plaintiff's witnesses, please review to ensure that there is no duplication. The number of witnesses is inconsistent with the trial estimate of 5-7 days. The court reserves the right to exclude witnesses per Evidence Code section 352.
2. **Defendant's Exhibit List:**
Please identify the exhibits you intend to move into evidence versus exhibits you are marking for foundation purposes. Given the volume of proposed exhibits, Defendant should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror's use during jury deliberations.
3. **Defendant's Motions in Limine:**

Defendant's MIL 1: Defendant challenges the use of DTI for assessment of traumatic brain injury ("TBI") as not being generally accepted in the scientific community. No California published court decision appears to address scientific acceptability of DTI to assess TBI nor the purported underlying analysis by Cortechs Labs, NeuroQuant and the QMETA. Other jurisdictions are inconsistent in finding DTI to assess TBI as scientifically reliable and contradictory decisions exist within those jurisdictions. The court notes the recent non-binding superior court decision in *Chapman v. Matulich* from Riverside County Superior Court 2022 Cal.Super LEXIS 98922 analyzing proposed testimony by expert Dr. Solomon and concluding the opinions were inadmissible.

A 402 hearing will be heard **August 19, 2026 at 10:00 a.m.** to determine the admissibility of Dr. Solomon's opinion under *Kelly* and extrapolation/analysis performed by Cortechs Labs, NeuroQuant and QMETA. Parties to meet and confer to determine whether Defendant's other objections, i.e. opinions regarding hemorrhaging shearing injury or non-hemorrhagic shearing injury, microbleeds, superficial siderosis or herniation at C3-4, annual tear, will be sought by Plaintiff. Additionally, confirm whether Plaintiff intends to use the demonstrative exhibits and be prepared to present the demonstrative exhibit at the 402 hearing.

Defendant's MIL2: Exclude evidence not produced in discovery. **RESERVED AS TRIAL OBJECTION.** Evidence not produced in discovery is generally excluded; however, without knowing the specific item to be excluded the court cannot rule.

Defendant's MIL3: Exclude expert opinions not expressed at deposition.
RESERVED AS TRIAL OBJECTION Defendants do not identify explicit issues upon which the court may rule.

Defendant's MIL 4: As liability is stipulated, exclude irrelevant evidence regarding the circumstances of the accident. **Not opposed, provided evidence of dog in Plaintiff's car also excluded. GRANTED BUT SEE PLAINTIFF'S MIL4.**

Defendant's MIL 5: Exclude cumulative and duplicative testimony. **PARTIES TO ADDRESS.** Above, the court expressed concern about the list of witnesses and repetitive nature of the proposed information provided by different experts and/or treating doctors. The estimated time for this trial was 7 days. This trial as currently planned by the parties will well exceed 14 days. Each party shall be prepared to address how testimony is not cumulative and is forewarned that the court will exercise its powers per Evidence Code 352.

Defendant's MIL 6: GRANTED IN PART. The parties appear to agree no accident reconstruction or biomechanical engineer evidence will be presented. The court expects that experts will discuss the basic aspects of the accident to explain their opinion regarding how certain forces from an accident can result in certain injuries.

Defendant's MIL 7: Exclude expert opinions regarding sub rosa. **DENIED.**

Defendant's MIL 8: GRANTED IN PART. The court presumes that this MIL relates to all medical treatment that was not provided on lien.

Defendant's MIL 9: Exclude evidence of life care plan due to the failure to discount the life care plan to present value. **DENIED.**

D. Proposed Jury Instructions and Verdict Form:

The court reserves over proposed jury instructions and verdict forms. Please meet and confer regarding retention of a single court reporter between the parties for each day of trial. The court reporter must be physically present in the courtroom and cannot appear via Zoom. The court reporter must be available during jury deliberations for read-back or have prepared a final transcript. An order appointing the reporter pro tem shall be submitted in advance to ensure the reporter is available and qualified. The reporter shall set up after conclusion of morning calendar and prior to commencement of trial. The court will not continue the case due to the absence of a reporter.

Parties shall make arrangements with the courtroom clerk to pre-mark exhibits and to lodge all originals of transcripts prior to trial. Please bring original deposition transcripts to the first day of trial.

Please reduce all stipulations to writing. The stipulations will be marked as a court exhibit and deemed admitted. Parties to notify the court when you wish the court to read the stipulation to the jury.

Jury fees shall be paid daily. Failure to pay jury fees will result in waiver of jury.

TARA N. CRUZ vs. CARVANA, LLC, ET AL.
Case No. CU25-05498

Demurrer to Second Amended Complaint

TENTATIVE RULING

Parties to appear.

Defendant GENERAL MOTORS COMPANY (“GM”) demurs to Plaintiff TARA CRUZ’s second amended complaint (“2AC”) alleging causes of action for (1) violation of the Song-Beverly Consumer Warranty Act, (2) strict product liability, (3) unfair competition, (4) Consumer Legal Remedies Act (“CLRA”) violations, and (5) fraud.

Summarized, Plaintiff alleges that on June 14, 2021 she bought a used 2014 Buick Encore (the “Vehicle”) from Defendant CARVANA, LLC. The Vehicle has needed repair several times since purchase. The Vehicle has a defective PCV pressure regulator diaphragm integrated into the camshaft cover. The Vehicle came with a buyer’s guide that represented it remained covered by the manufacturer’s warranty.

Notice of Tentative Ruling. GM’s notice of demurrer does not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). GM is cautioned to observe local rules going forward. Hence, the court has notified the parties to appear.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Statute of Repose – Song Beverly. Code of Civil Procedure section 871.21, subdivision (b) provides a six-year statute of repose for an action covered by section 871.20 (here, effectively, an action for breach of implied warranty under Song-Beverly),